



SPONSOR: Rep. Minor-Brown & Sen. Pinkney
Reps. Griffith, Heffernan, Hilovsky, Neal, Osienski,
Harris; Sen. Mantzavinos

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 148

AN ACT TO AMEND TITLE 24 OF THE DELAWARE CODE RELATING TO NURSING.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 1922, Title 24 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 1922. Disciplinary proceedings; appeal.

4 (e) *Letters of Concern.* – (1) If the Board determines after an investigation that a violation of this chapter or of the
5 regulations enacted pursuant to this chapter warranting formal disciplinary action has not occurred, but that an act or
6 omission of the licensee is a matter of concern and that licensee's practice may be improved if the licensee is made aware
7 of the concern, the Board may issue a non-disciplinary confidential letter of concern regarding the licensee's act or
8 omission.

9 (2) If a licensee receives a total of 3 letters of concern under this section, the Board may hold a hearing to assess
10 the licensee's professional competency to protect the health, safety, and welfare of the public. At such hearing, all of the
11 licensee's letters of concern may be deemed no longer confidential and may be admitted into evidence.

SYNOPSIS

This Act updates the Board of Nursing's enabling act to allow the Board to issue confidential letters of concern to licensees who have acted in manner warranting concern but have not violated the Board's statute or regulations. The purpose of the letter of concern is to encourage the licensee to improve such practice. The bill further allows the Board to require any licensee who receives 3 or more letters of concern to appear before the Board for a hearing to assess the licensee's competency, at which time the letters of concern would no longer be confidential.